

SUPERIOR COURT OF CALIFORNIA
COUNTY OF MERCED

Civil Law & Motion/Petition Name Change
Hon. Jennifer O Trimble
Courtroom 12

1159 G Street, Los Banos

Tuesday, June 23, 2026
1:30 p.m.

The following tentative rulings shall become the ruling of the court unless a party gives notice of intention to appear as follows:

1. You must call (209) 725-4240 to notify the court of your intent to appear.
2. You must give notice to all other parties before 4:00 p.m. of your intent to appear.

Per California Rules of Court, rule 3.1308(a)(1), failure to do both items 1 and 2 will result in no oral argument. *Note:* Notifying CourtCall (the court's telephonic appearance provider) of your intent to appear does not satisfy the requirement of notifying the court.

Case No.	Title / Description
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25CV-03377	JP Morgan Chase Bank N.A. vs Sylvia Ayala
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Motion for Order to Deem Matters Admitted

Plaintiff's motion to have Requests for Admission, Set One, deemed admitted is GRANTED.

Defendant has failed to provide timely responses to Requests for Admission, Set One.

The matters specified in Plaintiff's Requests for Admission, Set One, are deemed admitted, unless Defendant serves, before the hearing, a proposed response to the request for admissions, that is in substantial compliance with Code of Civil Procedure § 2033.220.

Unless the court receives notice that Defendant has served, before the hearing, proposed responses to the requests for admission, the court will sign the order lodged with the court on April 22, 2026.

26CV-00350	Jacqueline Barragan-Lomeli vs Joel Ramirez
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Motion to Compel Arbitration and Stay Action

The motion to compel arbitration is GRANTED.

The request to stay this action is GRANTED.

When a motion to compel arbitration is filed and accompanied by prima facie evidence of a written agreement to arbitrate the controversy, the court itself must determine: (1) whether the agreement exists, and (2) if any defense to its enforcement is raised, whether it is enforceable. The moving party bears the burden of proving the existence of an arbitration agreement by a preponderance of the evidence. The party claiming a defense bears the same burden as to the defense. (*Rosenthal v. Great Western Fin. Securities Corp.* (1996) 14 Cal.4th 394, 413-414.)

The moving party “can meet its initial burden by attaching to the [motion] a copy of the arbitration agreement purporting to bear the [opposing party’s] signature.” (*Bannister v. Marinidence Opco, LLC* (2021) 64 Cal.App.5th 541.)

By attaching the arbitration agreement as Exhibit C, to the Declaration of Gabriel Mejia, with Plaintiff’s handwritten signature, Defendant has established a prima facie case that an enforceable agreement to arbitrate exists.

Unless there is a dispute over authenticity, the mere recitation of the terms is sufficient for a party to move to compel arbitration. (*Sprunk v. Prisma LLC* (2017) 14 Cal.App.5th 785, 793.)

Although Plaintiff states she was handed a packet of documents that she was directed to sign (Barragan-Lomeli Decl. ¶ 2) and that she did not recall signing the document (Barragan-Lomeli Decl. ¶ 6) she does not deny signing the agreement. Moreover, Plaintiff attached as Exhibit 1 to her declaration the signed arbitration agreement.

“[I]f a plaintiff presented with a handwritten signature on an arbitration agreement is unable to allege the signature is inauthentic or forged, the plaintiff’s failure to recall signing the agreement neither creates a factual dispute as to the signature’s authenticity nor affords an independent basis to find that a contract was not formed.” (*Ramirez v. Golden Queen Mining Co., LLC* (2024) 102 Cal.App.5th 821, 835, as modified (June 11, 2024).)

Further, the court does not find that the alleged presentation and refusal to sign a subsequent arbitration agreement in January 2025, renders the signed November 12, 2024, arbitration agreement void. The effect is that the January 2025 arbitration agreement is not enforceable.

Regarding waiver, absent an actual filing of the threatened cross-complaint, the court does not find defense Counsel’s bluster in threatening a cross-complaint to constitute a waiver of arbitration.

Plaintiff also challenges the arbitration agreement as unconscionable. Here, there are some aspects of procedural unconscionability. However, a finding of procedural unconscionability “does not mean that the contract will not be enforced, but rather that the courts will scrutinize the substantive terms of the contract to ensure they are not

manifestly unfair or one-sided.” (*Baltazar v. Forever 21, Inc.*, (2016) 62. Cal.4th 1237, 1244.) In other words, because procedural unconscionability has been found, the analysis turns on consideration of the substantive unconscionability prong.

The substantive inquiry considers whether the overall bargain is overly harsh or unreasonably one sided. (*Armendariz v. Foundation Health Psychcare Services, Inc.* (2000) 24 Cal.4th 83, 114.)

Here, the terms of the arbitration agreement are not so harsh, unreasonable, or unfairly one sided as to render the agreement unconscionable. The arbitration agreement applies to all parties, provides for a neutral arbitrator that must follow the law, provides adequate discovery, provides types of relief otherwise available in this court, and Defendant is to pay for costs unique to arbitration.

The court also finds that pursuant to the terms of the arbitration agreement the rules set forth in the California Arbitration Act apply. (See Section G, Arbitration Procedure, ¶ 2.)

This action is stayed pending arbitration.

An arbitration status hearing is set for Tuesday, January 5, 2027, at 1:30 p.m. in Courtroom 12.

Defendant, as prevailing party, is ordered to prepare an order consistent with this order, to be filed with this court within five (5) days.

26CV-00169 Valley First Credit Union vs Delores Gomes

Motion for an Order Deeming Admitted All Responses to Request for Admissions

Plaintiff’s motion to have Requests for Admission, Set One, deemed admitted is GRANTED.

Defendant has failed to provide timely responses to Requests for Admission, Set One.

The matters specified in Plaintiff’s Requests for Admission, Set One, are deemed admitted, unless Defendant serves, before the hearing, a proposed response to the request for admissions, that is in substantial compliance with Code of Civil Procedure § 2033.220.

Unless the court receives notice that Defendant has served, before the hearing, proposed responses to the requests for admission, the court will sign the order lodged with the court on May 5, 2026.

Monetary sanctions are GRANTED. Monetary sanctions in the amount of \$455 are to be paid to Plaintiff within thirty (30) days of this court’s order.

Case Management Conference

Appearance required.